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United States of America

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I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.¹ It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Committee on the Elimination of Racial Discrimination encouraged the United States of America to consider ratifying the international human rights treaties that it had not yet ratified, including the International Covenant on Economic, Social and Cultural Rights, the Convention on the Elimination of All Forms of Discrimination against Women, the Convention on the Rights of the Child, the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, the Convention on the Rights of Persons with Disabilities and the International Convention for the Protection of All Persons from Enforced Disappearance. It also encouraged the United States to accede to the Convention relating to the Status of Stateless Persons and the Convention on the Reduction of Statelessness.²

3. The Human Rights Committee recommended that the United States reconsider its position regarding the reservations, declarations and understandings that it had lodged at the time of ratification of the International Covenant on Civil and Political Rights.³

4. The Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity underlined the importance of ratifying all human rights treaties, including those with provisions that would allow persons under the jurisdiction of the United States to submit individual complaints to the United Nations human rights treaty bodies or to the Inter-American Court of Human Rights.⁴

5. Several United Nations experts were alarmed by the escalating attacks by the United States on the international architecture of human rights, the rule of law, multilateralism, the principles of sovereign equality and self-determination, and vital international agreements on peace and security, climate change, global justice and international cooperation. They expressed concern over the country's withdrawal from key



international agreements and institutions, including the Paris Agreement, the Human Rights Council and World Health Organization, as well as over the review of its participation in the United Nations.⁵

6. The United States made four pledges in the context of the Human Rights 75 initiative: on racial justice, business and human rights, democracy and human rights, and gender and human rights.⁶

7. The United States made annual financial contributions to the Office of the United Nations High Commissioner for Human Rights (OHCHR) in 2021, 2022, 2023 and 2024.⁷

8. Several special procedure mandate holders condemned the United States sanctions against Francesca Albanese, Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967, as a direct attack on the integrity of the United Nations human rights system.⁸ The President of the Human Rights Council regretted the sanctions and called upon all United Nations Member States to refrain from any acts of intimidation or reprisal against special procedure mandate holders.⁹ The United Nations High Commissioner for Human Rights urged the prompt reversal of the sanctions.¹⁰

III. National human rights framework

Institutional infrastructure and policy measures

9. The Committee on the Elimination of Racial Discrimination reiterated its recommendation that the United States create a national human rights institution in accordance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles).¹¹ The Special Rapporteur on contemporary forms of racism, racial discrimination, xenophobia and related intolerance recommended that such an institution have the mandate and capacity to receive and investigate complaints of all forms of racial discrimination.¹²

10. The Special Rapporteur on minority issues recommended establishing an inter-agency federal body responsible for implementation of and follow-up to United Nations human rights mechanisms' recommendations.¹³

11. Concerns were raised by several special procedure mandate holders over drastic cuts to international aid, including the elimination of the United States Agency for International Development and the defunding of the United Nations Relief and Works Agency for Palestine Refugees in the Near East, and the impact of those actions on the lives and human rights of hundreds of millions of people.¹⁴

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

12. The International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement emphasized that systemic racism in law enforcement was rooted in the legacy of slavery and reinforced by racial stereotypes, leading to discriminatory practices such as racial profiling and excessive use of force against people of African descent.¹⁵ The Special Rapporteur on racism indicated that racially marginalized groups continued to experience persistent systemic racism. She recommended that the United States invest resources at the federal and state levels to develop a comprehensive reparatory justice approach, with reparation for slavery, colonialism and sustained systemic racism, in full and meaningful consultation with affected individuals and communities.¹⁶

13. The Committee on the Elimination of Racial Discrimination echoed the recommendation of the Working Group of Experts on People of African Descent to pass bill

HR40 on the Commission to Study and Develop Reparation Proposals for African Americans.¹⁷

14. The Human Rights Committee and the Committee on the Elimination of Racial Discrimination expressed concern about the persistence of hate crimes, including mass shootings, and hate speech against people of African and Asian descent, members of Indigenous Peoples and of Muslim and Jewish communities, persons of Hispanic/Latino origin, migrants and asylum-seekers, and persons based on their real or perceived sexual orientation or gender identity, including by politicians and high-level officials and public figures, in the media and on social media platforms.¹⁸ Both Committees recommended that the United States intensify action to tackle racist hate speech on the Internet and social media and improve the collection of data on hate crimes, including by making the reporting of hate crimes to the Federal Bureau of Investigation mandatory for all law enforcement agencies.¹⁹ The Special Rapporteur on minority issues noted the surge of antisemitism, anti-Asian speech, Islamophobia, derogatory slurs against Hispanic and Latinx, Arab and other minority communities, with algorithms of some social media platforms creating rabbit holes and amplifying prejudice, racism and disinformation.²⁰

15. The Special Rapporteur on minority issues recommended adopting comprehensive national human rights legislation to include international human rights obligations, particularly on the recognition of the right to equality without discrimination on grounds such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.²¹

16. The same Special Rapporteur recommended enacting legislation against hate crimes and countering hate speech on social networks, including by simplifying the deletion process of hate speech and crime postings on social media.²² The Special Rapporteur on racism recommended taking more targeted measures to prevent and address hatred against people of African descent and urgently developing responses to recent rises in antisemitism and Islamophobia, in consultation with the communities affected, including by investigating and prosecuting criminal acts.²³

2. Right to life, liberty and security of person, and freedom from torture

17. The United Nations High Commissioner for Human Rights referred to the misclassification and underreporting of deaths of people of African descent involving law enforcement officers.²⁴ The International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement, the Special Rapporteur on minority issues and the High Commissioner expressed concern about police killings of and violence and brutality towards African Americans.²⁵ The Expert Mechanism reported a lack of accountability in cases related to police abuse.²⁶ The Special Rapporteur on minority issues noted that independent and effective oversight of law enforcement was crucial to ending such practices, in addition to other measures to de-escalate confrontational approaches towards certain minorities, and thus ending prevalent racial profiling practices.²⁷

18. The International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement expressed concern that the existing regulatory framework on the use of force was conducive to the early and unjustified use of force, including lethal force, by law enforcement officers. It recommended that the United States adopt a human rights-based approach to policing and review and modify all laws, policies, procedures and practices to restrict the use of force to ensure their compliance with international standards.²⁸

19. The Human Rights Committee recommended that the United States prevent and reduce gun violence by strengthening legislative and policy measures requiring background checks for all private acquisitions and transfers of firearms and ammunition and restricting access to firearms by those most at risk of abusing them.²⁹

20. The same Committee recommended establishing a de jure moratorium on the death penalty at the federal level and taking steps towards its abolition.³⁰ The International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement called upon the United States to abolish the death penalty in all its jurisdictions.³¹ The United Nations High Commissioner for Human Rights regretted the execution of a man in Alabama by suffocation using nitrogen gas, warning that it might amount to torture or cruel,

inhuman and degrading treatment.³² Racial discrimination and bias were also reported as concerns in many death penalty cases.³³

21. The Human Rights Committee stated that the United States should review its position regarding the establishment of a specific offence of torture, enact legislation prohibiting torture in line with international law in order to enhance the prevention of torture, and ensure that evidence and confessions obtained through torture were inadmissible in legal proceedings, without exception. It recommended ensuring that all persons deprived of their liberty had access to an independent and effective complaints mechanism for the investigation of allegations of torture and ill-treatment.³⁴

3. International humanitarian law

22. The Human Rights Committee remained seriously concerned at the practice by the United States of using armed drones for killings in extraterritorial counter-terrorism operations, the lack of transparency regarding the legal and policy criteria for drone strikes, the alleged possibility that those criteria could be changed according to classified plans and the lack of accountability for loss of life and other serious harm caused, in particular to civilians. The Committee recommended that any use of armed drones comply fully with article 6 of the International Covenant on Civil and Political Rights, in particular with respect to the principles of precaution, distinction and proportionality in the context of an armed conflict. It also recommended that the United States conduct independent, impartial, prompt and effective investigations into allegations of violations of the right to life and ensure that those responsible were prosecuted and, if convicted, punished with appropriate sanctions.³⁵

23. The Special Rapporteur on torture and other cruel, inhuman or degrading treatment or punishment urged the United States to reconsider its decision to transfer cluster munitions to a third country as those weapons posed a serious and indiscriminate threat to civilians.³⁶

24. Several special procedure mandate holders said that the pardons granted to four private security contractors convicted for war crimes in a third country violated United States obligations under international law.³⁷

25. Several special procedure mandate holders condemned the executive order imposing sanctions on the International Criminal Court. They warned that, by sanctioning the Court, the United States weakened the post-Nuremberg commitment to international criminal justice and empowered war criminals, denying justice to victims worldwide.³⁸ The United Nations High Commissioner for Human Rights expressed concerns about sanctions against judges of the Court and called for the prompt reconsideration and withdrawal of those measures.³⁹

4. Human rights and counter-terrorism

26. The Committee on the Elimination of Racial Discrimination highlighted the continued arbitrary detention of non-citizens at the Guantanamo Bay facility, without effective and equal access to the ordinary criminal justice system and reports of inadequate medical assistance.⁴⁰ The Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism welcomed some improvement at the detention facility at the Guantanamo Bay, including on detention conditions, basic healthcare and services, sanitation, food, recreational activities and communal prayer. However, significant structural shortages remained regarding access to justice and rights to health and family. She found that arbitrariness pervaded the entirety of the Guantanamo detention infrastructure, rendering detainees vulnerable to human rights abuse and contributing to conditions, practices and circumstances that led to arbitrary detention.⁴¹

27. The Special Rapporteur on terrorism stated that none of the former detainees had been compensated for the systematic crimes of extraordinary rendition, torture, cruel, inhuman and degrading treatment and arbitrary detention. She reiterated that any violation of international law gave rise to an obligation to make reparation and that gross and systematic violations of international human rights law and serious violations of international humanitarian law were not subject to statutes of limitation. She stressed that the cumulative effects of past rendition, disappearance, incommunicado detention, systematic torture and ill-treatment and continued detention had had severe and long-term psychological and physical consequences. She

concluded that the United States had failed to promote and protect fair trial guarantees and had severely impeded detainees' access to justice.⁴²

28. The same Special Rapporteur urged the United States to close the Guantanamo Bay detention facility, while preserving it to ensure independent and effective investigation of torture, in line with international standards.⁴³ The Human Rights Committee recommended expediting the transfer of detainees designated for transfer from that facility and putting an end to administrative detention without charge or trial, ensuring that detainees were afforded fair trial guarantees.⁴⁴

5. Administration of justice, including impunity, and the rule of law

29. The Human Rights Committee was deeply concerned at the limited number of prosecutions and convictions of members of the armed forces and other State agents for human rights violations, including in the context of the secret rendition, interrogation and detention programmes of the Central Intelligence Agency. It recommended that the United States effectively, independently and impartially investigate all cases of unlawful killing, torture or other ill-treatment, unlawful detention or enforced disappearance, prosecute and, if convicted, sanction perpetrators, including persons in positions of command, establish the responsibility of those who provided legal pretexts for manifestly illegal behaviour and provide victims and their families with effective remedies. It also recommended that the United States declassify and release the report of the Senate Select Committee on Intelligence on the secret detention programme of the Central Intelligence Agency and consider the full incorporation of the doctrine of command responsibility into its criminal law.⁴⁵

30. The International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement stressed that systemic racism had manifested in the disproportionate incarceration and harsher sentencing of Black individuals, perpetuating structural inequality and limiting access to justice.⁴⁶ The Committee of Experts on the Application of Conventions and Recommendations of the International Labour Organization reiterated its concern regarding the significant overrepresentation of African Americans and Latinos/Hispanics in the United States prison population.⁴⁷ The Special Rapporteur on racism noted that those from racially marginalized groups who were convicted of crimes were often more likely to be sentenced to life without the possibility of parole and other excessive sentences, including those which exceeded natural life expectancy, referred to collectively as "death by incarceration" sentences. She stressed that such sentences did not offer the chance of parole and negated the rehabilitative function of the prison system. She referred to reports of poorly paid or unpaid forced labour by prisoners, who were disproportionately from racially marginalized groups, and of prison overcrowding and violence, including sexual violence, allegedly perpetrated by detainees and prison officials.⁴⁸

31. The Special Rapporteur on minority issues noted sentencing disparities and incarceration rates for minorities in the criminal justice system of the United States. The Special Rapporteur was of the view that minorities found themselves disproportionately at the receiving end of marginalization and criminalization that crushed them into a cycle of generational poverty.⁴⁹ The Special Rapporteur on racism recommended fully implementing the recommendations of the International Independent Expert Mechanism to Advance Racial Justice and Equality in Law Enforcement and of the High Commissioner's agenda towards transformative change for racial justice and equality.⁵⁰ The Committee on the Elimination of Racial Discrimination recommended addressing the disproportionate impact that systemic inadequacies in criminal defence programmes for indigent persons had on defendants belonging to racial and ethnic minorities, including by improving the quality of legal representation and adequately funding and supervising public legal aid systems.⁵¹

32. The Special Rapporteur on the independence of judges and lawyers condemned executive actions targeting judges and law firms involved in legal challenges to executive orders. She urged the United States to adhere to international standards and stop all efforts to interfere in the work of lawyers, law firms and judges.⁵²

6. Fundamental freedoms and the right to participate in public and political life

33. The Special Rapporteur on the right to education expressed concern over the violent crackdown on student protests on university campuses, particularly police violence, arrests, surveillance and disciplinary actions against peaceful demonstrators. She condemned the unequal treatment of protesters, particularly pro-Palestinian students, and warned that those attacks signalled an erosion of intellectual freedom and democratic principles in educational settings. She urged the Government to reaffirm its fundamental commitment to freedom of speech and ensure that students had access to wide range of ideas and perspectives.⁵³ The Special Rapporteur on the rights to freedom of peaceful assembly and of association noted that, in various universities in the United States, authorities and law enforcement entities had responded disproportionately to peaceful student-led protests, with vilification, criminalization, sanctions, arrests, detentions and the use of excessive force. Such actions were discriminatory, excessive and contrary to the State's obligations to facilitate the right to peaceful assembly.⁵⁴

34. Several special procedure mandate holders expressed alarm that deportation was being weaponized to censor critical voices, damaging freedom of speech and assembly. They called upon the United States to immediately end retaliation against students supporting Palestinians' rights and to respect freedoms of expression and of peaceful assembly.⁵⁵

35. The Human Rights Committee expressed concern at the increasing number of legislative initiatives and practices at the state level limiting the right to vote, including partisan gerrymandering, restrictions on voting by mail and burdensome voter identification.⁵⁶ The Special Rapporteur on racism highlighted the disproportionate impact of those initiatives, which suppressed the votes of eligible voters, including racially marginalized groups such as people of African descent, Indigenous Peoples and persons of Latino/Hispanic origin.⁵⁷ The Special Rapporteur on minority issues concluded that the right to vote of African Americans, Asian Americans and Hispanic and Latinx populations had been disproportionately and negatively affected by such initiatives. Many of the obstacles they faced in exercising the right to vote were unreasonable and therefore discriminatory, which undermined and endangered democracy.⁵⁸

36. The Special Rapporteur on minority issues and the Special Rapporteur on racism recommended adopting the Freedom to Vote and the John R. Lewis Voting Rights Advancement Act and pursuing a campaign to revamp the Voting Rights Act of 1965 to address contemporary forms of disenfranchisement. They also recommended revising federal and other legislation to lift the denial of the right of United States citizens and nationals of overseas territories to vote in federal and presidential elections.⁵⁹

7. Right to privacy

37. The Special Rapporteur on the right to privacy mentioned significant challenges in the context of surveillance practices and legal safeguards. He noted the fragmentation of privacy laws and the differential treatment of citizens and non-citizens.⁶⁰ The Human Rights Committee remained concerned about the overly broad scope of section 702 of the Foreign Intelligence Surveillance Act.⁶¹ The Special Rapporteur on privacy stressed that the current legal framework did not adequately incorporate the principles of necessity and proportionality when authorizing surveillance, raising the risk of overreach, especially in cases involving bulk data collection and intelligence operations conducted under Executive Order 12333 and section 702 of the Foreign Intelligence Surveillance Act. He recommended a comprehensive reform of privacy legislation, including modernizing the Privacy Act (1974) and harmonizing privacy protections at the federal and state levels. He also recommended repealing section 14 of the Executive Order entitled "Enhancing Public Safety in the Interior of the United States", which explicitly excluded non-citizens and non-residents from protection under the Privacy Act.⁶²

8. Prohibition of all forms of slavery, including trafficking in persons

38. The Human Rights Committee recommended that the United States redouble its efforts to combat trafficking in persons by improving victim identification, strengthening its preventive measures, prosecuting and punishing those responsible and providing effective

remedies, including protection, rehabilitation and compensation, to all victims without discrimination.⁶³

9. Right to an adequate standard of living

39. The Independent Expert on the enjoyment of human rights by persons with albinism noted that income inequalities remained high in the United States, with some 40 million people reportedly living in poverty.⁶⁴ The Special Rapporteur on racism expressed concern about the overrepresentation of people of African descent, Indigenous Peoples, people living in the overseas territories and persons of Latino/Hispanic origin among those living in poverty. She referred to reports of the criminalization of poverty, which trapped people in the criminal justice system. She also expressed concern about significant racial income and wealth gaps, driven by employment-related discrimination, systemic racism and historical government divestment. She recommended stepping up efforts to address poverty and inequality affecting those from marginalized racial and ethnic groups, ensuring that structural issues driving such poverty were effectively addressed.⁶⁵

40. The Independent Expert on sexual orientation and gender identity noted that the rate of trans persons living in poverty or being unemployed was much higher than the national average. He recommended pursuing legislation to promote the highest possible level of equal protection from employment discrimination.⁶⁶

41. Alarmed by the disproportionate rates of persons from racially marginalized groups experiencing food insecurity, the Special Rapporteur on racism recommended urgently addressing racially discriminatory food systems and their impact, including racial inequities in food insecurity, and implementing the National Strategy on Hunger, Nutrition and Health.⁶⁷ The Committee on the Elimination of Racial Discrimination recommended strengthening efforts to combat hunger and food insecurity, which disproportionately affected racial and ethnic minorities, and especially women and children.⁶⁸

42. The Committee on the Elimination of Racial Discrimination and the Human Rights Committee expressed concern about the high number of persons belonging to racial and ethnic minorities affected by homelessness and recommended abolishing laws and policies that criminalized homelessness and redirecting funding from criminal justice responses towards adequate housing and shelter programmes.⁶⁹

10. Right to health

43. Several special procedure mandate holders considered that the United States Supreme Court decision to strike down *Roe v. Wade* represented a setback for the rule of law and for gender equality. They expressed concern at the lack of clarity of the legal parameters of abortion following the decision, which would now vary depending on where someone resided, and at the risk of prosecution. They urged the Government to protect access to safe abortion and restrict measures aimed at limiting interstate travel for abortion seekers and providers. They reminded state legislatures that it was still within their power to protect abortion rights and access to services at the state level, emphasizing the need to protect women, girls and others who might become pregnant from serious violations of their human rights.⁷⁰ Similarly, the Independent Expert on sexual orientation and gender identity considered that the overruling of *Roe v. Wade* was devastating for the human rights of lesbian and bisexual women, as well as trans men and gender-diverse persons with gestational capacity.⁷¹ The Human Rights Committee recommended adopting the Women's Health Protection Act.⁷²

44. The Human Rights Committee recommended that the United States redouble its efforts to prevent and combat maternal mortality and morbidity and to eliminate discrimination and disparities in the field of sexual and reproductive health and rights, in particular racial and ethnic disparities, and integrate an intersectional and culturally respectful approach into policies and programmes aimed at improving women's access to comprehensive sexual and reproductive health services.⁷³

11. Right to education

45. The Special Rapporteur on the right to education identified systemic inequalities in the education system, including inequitable funding, overreliance on standardized testing, discriminatory disciplinary practices and the diversion of public funds to private and charter schools. She noted that political interference, discriminatory censorship laws and book bans restricted access to diverse perspectives and critical inquiry.⁷⁴

46. The Special Rapporteur on racism expressed concern at initiatives aiming to exclude critical race theory from curricula and to prevent the teaching of racial and ethnic studies, and the underfunding of an historical divestment in historically Black colleges and universities.⁷⁵ She recommended ensuring that accurate historical accounts and critical race theory be permitted within educational settings and training all teachers and school staff in racial equality, implicit bias and non-discrimination standards.⁷⁶ The Committee on the Elimination of Racial Discrimination recommended that the United States take all measures necessary to ensure that human rights education – including on Indigenous Peoples’ history, culture and languages, and on respect for diversity and the promotion of equal treatment – was part of the school curriculum at all levels.⁷⁷

47. The Special Rapporteur on racism recommended considering the reinstatement of affirmative action in college admissions in both state and federal law and taking all legal steps to support the access of persons from racially marginalized groups to high-quality college education.⁷⁸

48. The Special Rapporteur on minority issues recommended establishing national standards for the funding of public schools to address more comprehensively the systemic and discriminatory impact of locally based funding approaches to public education, which continued to systematically disadvantage minorities from poorer communities.⁷⁹

12. Development, the environment, and business and human rights

49. The Special Rapporteur on minority issues noted the disproportionate exposure of minority, racial and ethnic communities to serious environmental hazards and contamination and the disproportionately higher rates of cancer and disease and children with learning deficiencies or developmental challenges and lower life expectancies in such communities. He called for a nationwide study and consultation process on “environmental injustice and discrimination”, in preparation of a national action plan to identify and prioritize the decontamination of sites still threatening the water supply and the environment of minority groups, including former sites and sites presently being used by the United States military.⁸⁰ The Special Rapporteur on racism recommended urgently cleaning up toxic waste and environmental contamination, particularly in areas where it was having a disproportionate impact on marginalized racial and ethnic groups, including in the overseas territories.⁸¹

50. The Human Rights Committee recommended that the United States intensify efforts to prevent and mitigate the effects of climate change and environmental degradation.⁸²

51. Several special procedure mandate holders urged businesses in the United States to reaffirm their commitment to diversity, equity and inclusion principles, uphold their human rights responsibilities under the Guiding Principles on Business and Human Rights and collaborate with civil society, including LGBTI+ communities and human rights defenders.⁸³

B. Rights of specific persons or groups

52. Several special procedure mandate holders were deeply concerned about the Government’s revocation of diversity, equity and inclusion policies, warning that it had undermined workplace inclusivity and reinforced structural inequalities and discrimination, particularly affecting marginalized groups such as LGBTI+ individuals.⁸⁴

1. Women

53. The Human Rights Committee expressed concern about the persistence of violence against women and about Indigenous women and girls being disproportionately affected by

violence, homicide and disappearances. It also expressed concern about the absence of comprehensive data on murdered and missing Indigenous women and the lack of adequate resources for the effective and culturally appropriate investigation of cases. It recommended intensifying efforts to prevent, combat and eradicate all forms of violence against women and girls, paying special attention to women from minority and marginalized groups, facilitating the reporting of cases and ensuring the safety of women and girls who came forward, protecting them from retaliation. It also recommended ensuring that cases of violence against women and girls were thoroughly and effectively investigated and that perpetrators were prosecuted and, if convicted, punished with appropriate sanctions. It further recommended intensifying efforts to prevent the occurrence of murders and disappearances of Indigenous women and girls.⁸⁵

2. Children

54. The Committee on the Elimination of Racial Discrimination expressed concern about the disproportionate number of children from racial and ethnic minorities removed from their families and placed in foster care.⁸⁶ It recommended eliminating racial discrimination in the child welfare system, including by amending or repealing laws, policies and practices that had a disparate impact on families belonging to racial and ethnic minorities.⁸⁷ The Human Rights Committee recommended increasing due process protections for parents and reviewing the factors triggering child welfare interventions, in particular poverty and lack of financial resources.⁸⁸

3. Persons with disabilities

55. The Independent Expert on albinism recommended that the United States carry out a comprehensive situational analysis of albinism in the country and develop a data-collection system on albinism, including rarer forms of albinism, with information disaggregated by state, gender, age and other factors.⁸⁹

56. The same Independent Expert referred to stigma and discrimination against persons with albinism, profound implications for their access to healthcare caused by disparities in insurance coverage and challenges in accessing education, reasonable accommodation and public infrastructure. She recommended developing a sensitization campaigns on all types of albinism, building the capacity of health professionals to respond to the needs of persons with albinism, and providing funding and capacity development for organizations working on albinism.⁹⁰

57. The same Independent Expert recommended reviewing the implementation of the reasonable accommodation provision in the Americans with Disabilities Act and addressing gaps in the availability of accommodation at all levels of the school and university systems.⁹¹

4. Indigenous Peoples and minorities

58. The Committee on the Elimination of Racial Discrimination expressed concern about allegations indicating that the United States had not taken measures to honour bilateral treaties with Indigenous Peoples, obstacles to the recognition of Indigenous Peoples, the restrictive interpretation of the principle of free, prior and informed consent and the lack of timely and meaningful consultation with them, and the negative impact of extractive industries and infrastructure projects on Indigenous Peoples' rights and ways of life.⁹² In this regard, the Committee issued four early warnings about business projects and the absence of proper consultation with or free, prior and informed consent of the Gwich'in people, the Anishinaabe people, Native Hawaiians and the Indigenous San Carlos Apache Tribe.⁹³ The same Committee and the Human Rights Committee recommended that the United States honour the treaties entered into with Indigenous Peoples, guarantee, in law and in practice, the principle of free, prior and informed consent and the right of Indigenous Peoples to be consulted on any legislative or administrative measure that could affect their rights and take measures to effectively protect their lands and sites from the adverse impact of extractive industries, military infrastructure and toxic and nuclear waste.⁹⁴ The Special Rapporteur on racism recommended redoubling efforts to ensure the promotion and protection of the rights of Indigenous Peoples to land, territory and natural resources.⁹⁵

59. The Special Rapporteur on minority issues noted that religious bias affected religious or belief minorities. He recommended amending the Civil Rights Act of 1964 to cover discrimination based on religion or belief.⁹⁶

60. The same Special Rapporteur noted that an anachronistic legal and political legacy with a colonial mindset towards mainly non-white minorities remained in place and considered that a new federal approach was necessary to fully respect the identity, traditions and specificities of the populations of the territories and their minority communities.⁹⁷

5. Lesbian, gay, bisexual, transgender and intersex persons

61. Several special procedure mandate holders expressed deep concern over a 2025 executive order targeting diversity, equity and inclusion programmes, warning that it increased human rights risks for LGBTI+ persons.⁹⁸

62. The Independent Expert on sexual orientation and gender identity highlighted the inequalities in the protection of the rights of lesbian, gay, bisexual, trans and gender-diverse (LGBT) persons from one state to another and was concerned by a widespread set of state-level legislative, executive and judicial actions aimed at regression in the protection of the human rights of LGBT persons, covering issues such as comprehensive sexual and gender education, access of trans persons to sports and single-sex facilities, and gender-affirming care. He noted increasing calls for “religious-based exemptions” from laws guaranteeing equality for LGBT persons. He recommended that the United States enhance anti-discrimination legal protections, including by passing the Equality Act, and adopt legislation necessary for the legal recognition of gender identity at the federal and state levels.⁹⁹

63. The same Independent Expert noted widespread discrimination and prejudice against LGBT persons in their access to healthcare. He deplored the toxic environment and propagation of anti-LGBT discourse and bills and the negative impact on the mental health of LGBT persons. He recommended monitoring outcomes in key sectors such as health, education, employment and housing, with a view to adopting laws and policies to reduce human rights disparities based on sexual orientation and gender identity.¹⁰⁰

6. Migrants, refugees and asylum-seekers

64. Several special procedure mandate holders expressed concern over the misuse of the Alien Enemies Act by the Government of the United States to deny due process and enable arbitrary deportations, involving enforced disappearances, including of individuals not involved with gangs.¹⁰¹ The United Nations High Commissioner for Human Rights called upon the Government of the United States to ensure due process, enforce court rulings, protect children’s rights and halt removals where there was a risk of torture.¹⁰²

65. The Special Rapporteur on racism expressed concern about systemic racism in migration governance, including measures to externalize and militarize borders to prevent migration, supported by an increasing use of surveillance and other forms of digital technologies. She stated that deterrence policies often disregarded the State’s obligation towards asylum-seekers.¹⁰³

66. The same Special Rapporteur noted reports of mandatory detention of non-citizens without due process or legal representation, in detention centres with inadequate and sometimes dangerous conditions.¹⁰⁴ The Human Rights Committee urged the United States to ensure that immigration detention was used only as a last resort and for the shortest time possible and to provide access to legal aid and language interpretation.¹⁰⁵

67. The Independent Expert on sexual orientation and gender identity described the general policy of administrative detention of asylum-seekers as not justified under international human rights law and noted that LGBT persons in immigration detention were at a higher risk of sexual assault. He recommended ensuring remedies to any persons whose rights were violated under United States laws and policies on asylum and enhancing the differential measures or protocols for LGBT persons in contact with Immigration and Customs Enforcement.¹⁰⁶

68. The Committee on the Elimination of Racial Discrimination expressed concern about reports of excessive use of force by authorities, resulting in killings of undocumented

migrants, and about the lack of comprehensive data on immigration detention and asylum procedures and outcomes.¹⁰⁷ The Human Rights Committee recommended adopting additional measures to prevent deaths in migrant detention facilities and ensuring investigations, sanctions and reparation.¹⁰⁸

69. The Human Rights Committee was concerned that measures adopted to address migration challenges excessively restricted protection of the right to seek asylum and increased the risk of breaches of the principle of *refoulement*. It recommended ensuring effective access to fair and efficient asylum procedures that provided adequate protection against *refoulement*.¹⁰⁹

7. Stateless persons

70. The Special Rapporteur on minority issues recommended that the United States adopt a statelessness determination system so that many among the more than 200,000 stateless individuals living in the country, particularly children, had a pathway towards citizenship.¹¹⁰

C. Specific regions or territories

71. The Independent Expert on albinism recommended that the executive and legislative authorities in Puerto Rico accelerate the implementation of Law No. 109 of 2022 on the Public Policy of the Government of Puerto Rico on Persons with Albinism and Heřmanský-Pudlák Syndrome and address the gaps in the healthcare system in Puerto Rico.¹¹¹

Notes

- ¹ [A/HRC/46/15](#), [A/HRC/46/15/Add.1](#) and [A/HRC/46/2](#).
- ² [CERD/C/USA/CO/10-12](#), para. 59. See also [A/HRC/49/46/Add.1](#), para. 70 (b); [A/HRC/56/49/Add.3](#), para. 83 (a); [A/HRC/56/68/Add.1](#), para. 72 (e); [A/HRC/58/57/Add.1](#), para. 56 (a); and [CCPR/C/USA/CO/5](#), para. 19.
- ³ [CCPR/C/USA/CO/5](#), para. 5.
- ⁴ [A/HRC/56/49/Add.3](#), para. 8. See also [A/HRC/49/46/Add.1](#), para. 70 (a).
- ⁵ See <https://www.ohchr.org/en/press-releases/2025/02/new-us-administration-must-recommit-human-rights-home-and-abroad-un-experts>.
- ⁶ See https://www.ohchr.org/sites/default/files/udhr/publishingimages/75udhr/USA_EN.pdf.
- ⁷ OHCHR, *United Nations Human Rights Report 2021*, p. 490, *United Nations Human Rights Report 2022*, p. 434, *United Nations Human Rights Report 2023*, p. 360, and *United Nations Human Rights Report 2024*, p. 400.
- ⁸ See <https://www.ohchr.org/en/statements/2025/08/us-sanctions-special-rapporteur-francesca-albanese-threaten-human-rights-system>. See also <https://www.ohchr.org/en/press-releases/2025/07/silence-not-option-un-special-procedures-coordination-committee-condemns-us>.
- ⁹ See <https://www.ohchr.org/en/press-releases/2025/07/statement-ambassador-jurg-lauber-president-united-nations-human-rights>.
- ¹⁰ See <https://www.ohchr.org/en/press-releases/2025/07/comment-un-high-commissioner-human-rights-volker-turk-us-sanctions-against>.
- ¹¹ [CERD/C/USA/CO/10-12](#), para. 11. See also [A/HRC/56/49/Add.3](#), para. 83 (b).
- ¹² [A/HRC/56/68/Add.1](#), para. 72 (b).
- ¹³ [A/HRC/49/46/Add.1](#), para. 70 (c).
- ¹⁴ See <https://www.ohchr.org/en/press-releases/2025/02/new-us-administration-must-recommit-human-rights-home-and-abroad-un-experts>.
- ¹⁵ See <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>. See also [CERD/C/USA/CO/10-12](#), paras. 18 and 19.
- ¹⁶ [A/HRC/56/68/Add.1](#), paras. 6 and 72. See also <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ¹⁷ [CERD/C/USA/CO/10-12](#), para. 56.
- ¹⁸ [CCPR/C/USA/CO/5](#), para. 10; and [CERD/C/USA/CO/10-12](#), para. 14. See also [A/HRC/51/53](#), para. 10.
- ¹⁹ [CCPR/C/USA/CO/5](#), para. 11; and [CERD/C/USA/CO/10-12](#), para. 15 (b)–(d).
- ²⁰ [A/HRC/49/46/Add.1](#), para. 50.
- ²¹ *Ibid.*, para. 71 (a).

- ²² Ibid., para. 52.
- ²³ [A/HRC/56/68/Add.1](#), para. 72 (iii), (lll) and (oooo).
- ²⁴ [A/HRC/51/53](#), para. 19.
- ²⁵ [A/HRC/49/46/Add.1](#), para. 44; see [A/HRC/51/53](#); and see <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>. See also <https://www.ohchr.org/en/press-releases/2024/06/united-states-un-experts-urge-action-address-lives-stolen-systemic-racist>.
- ²⁶ See <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ²⁷ [A/HRC/49/46/Add.1](#), para. 44.
- ²⁸ See <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ²⁹ [CCPR/C/USA/CO/5](#), para. 35. See also [A/HRC/56/68/Add.1](#), para. 72 (zz).
- ³⁰ [CCPR/C/USA/CO/5](#), para. 31.
- ³¹ See <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ³² See <https://www.ohchr.org/en/statements-and-speeches/2024/01/alabama-execution>. See also <https://www.ohchr.org/en/press-releases/2024/11/united-states-experts-call-urgent-ban-executions-nitrogen-gas-alabama>.
- ³³ [A/HRC/51/53](#), para. 36.
- ³⁴ [CCPR/C/USA/CO/5](#), para. 43.
- ³⁵ Ibid., paras. 32 and 33 (a) and (e).
- ³⁶ See <https://www.ohchr.org/en/press-releases/2023/09/un-expert-urges-us-government-review-decision-transfer-cluster-munitions>.
- ³⁷ See <https://www.ohchr.org/en/press-releases/2020/12/us-pardons-blackwater-guards-affront-justice-un-experts>. See also <https://www.ohchr.org/en/statements-and-speeches/2020/12/comment-un-human-rights-office-spokesperson-marta-hurtado-us>.
- ³⁸ See <https://www.ohchr.org/en/press-releases/2025/02/united-states-un-experts-condemn-sanctions-against-icc>.
- ³⁹ See <https://www.ohchr.org/en/statements-and-speeches/2025/06/comment-un-human-rights-chief-volker-turk-us-imposition-sanctions>.
- ⁴⁰ [CERD/C/USA/CO/10-12](#), para. 51 (f).
- ⁴¹ See <https://www.ohchr.org/sites/default/files/documents/issues/terrorism/sr/2023-06-26-SR-terrorism-technical-visit-US-guantanamo-detention-facility.pdf>.
- ⁴² Ibid.
- ⁴³ Ibid.
- ⁴⁴ [CCPR/C/USA/CO/5](#), para. 49.
- ⁴⁵ Ibid., paras. 8 and 9.
- ⁴⁶ See <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ⁴⁷ See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4046585,102871:NO.
- ⁴⁸ [A/HRC/56/68/Add.1](#), paras. 44, 45 and 48. See also <https://www.ohchr.org/en/documents/country-reports/ahrc54crp7-international-independent-expert-mechanism-advance-racial>.
- ⁴⁹ [A/HRC/49/46/Add.1](#), paras. 41 and 42.
- ⁵⁰ [A/HRC/56/68/Add.1](#), para. 72 (bbb). See also [A/HRC/49/46/Add.1](#), para. 75.
- ⁵¹ [CERD/C/USA/CO/10-12](#), para. 54.
- ⁵² See <https://www.ohchr.org/en/press-releases/2025/06/usa-un-expert-warns-interference-legal-and-judicial-system>.
- ⁵³ See <https://www.ohchr.org/en/press-releases/2024/05/un-expert-alarmed-violent-crackdown-peaceful-student-protests-across-us>.
- ⁵⁴ [A/79/263](#), para. 58.
- ⁵⁵ See <https://www.ohchr.org/en/press-releases/2025/03/us-must-immediately-release-palestinian-rights-activist-mahmoud-khalil-and>.
- ⁵⁶ [CCPR/C/USA/CO/5](#), para. 64.
- ⁵⁷ [A/HRC/56/68/Add.1](#), para. 12.
- ⁵⁸ [A/HRC/49/46/Add.1](#), paras. 29 and 31.
- ⁵⁹ Ibid., para. 72 (a) and (b); and [A/HRC/56/68/Add.1](#), para. 72 (i) and (n).
- ⁶⁰ [A/HRC/46/37/Add.4](#), paras. 9–12.
- ⁶¹ [CCPR/C/USA/CO/5](#), para. 56.
- ⁶² [A/HRC/46/37/Add.4](#), paras. 11, 26, 33, 49 and 53.
- ⁶³ [CCPR/C/USA/CO/5](#), para. 51.

- ⁶⁴ A/HRC/58/57/Add.1, para. 7.
- ⁶⁵ A/HRC/56/68/Add.1, paras. 23, 24 and 72 (bb).
- ⁶⁶ A/HRC/56/49/Add.3, paras. 42 and 86.
- ⁶⁷ A/HRC/56/68/Add.1, paras. 34 and 72 (pp) and (qq).
- ⁶⁸ CERD/C/USA/CO/10-12, para. 42.
- ⁶⁹ Ibid., paras. 39 and 40; and CCPR/C/USA/CO/5, paras. 40 and 41.
- ⁷⁰ See <https://www.ohchr.org/en/press-releases/2022/06/usa-un-experts-denounce-supreme-court-decision-strike-down-roe-v-wade-urge>.
- ⁷¹ A/HRC/56/49/Add.3, para. 17.
- ⁷² CCPR/C/USA/CO/5, para. 29.
- ⁷³ Ibid., para. 27. See also CERD/C/USA/CO/10-12, para. 36.
- ⁷⁴ See A/HRC/59/41/Add.1.
- ⁷⁵ A/HRC/56/68/Add.1, para. 17. See also A/HRC/51/53, para. 9.
- ⁷⁶ A/HRC/56/68/Add.1, para. 72 (o) and (r).
- ⁷⁷ CERD/C/USA/CO/10-12, para. 58 (a).
- ⁷⁸ A/HRC/56/68/Add.1, para. 72 (u) and (v).
- ⁷⁹ A/HRC/49/46/Add.1, para. 73 (d).
- ⁸⁰ Ibid., paras. 64, 65 and 77. See also CERD/C/USA/CO/10-12, paras. 45 and 46.
- ⁸¹ A/HRC/56/68/Add.1, para. 72 (mm).
- ⁸² CCPR/C/USA/CO/5, para. 39.
- ⁸³ See <https://www.ohchr.org/en/press-releases/2025/03/usa-businesses-must-stand-firm-diversity-equity-and-inclusion-say-experts>.
- ⁸⁴ Ibid.
- ⁸⁵ CCPR/C/USA/CO/5, paras. 20–23.
- ⁸⁶ CERD/C/USA/CO/10-12, para. 43. See also CCPR/C/USA/CO/5, para. 62.
- ⁸⁷ CERD/C/USA/CO/10-12, para. 44.
- ⁸⁸ CCPR/C/USA/CO/5, para. 63.
- ⁸⁹ A/HRC/58/57/Add.1, para. 57 (a) and (b).
- ⁹⁰ Ibid., paras. 32–34, 38–41, 47–51, 58 (a) and 60 (a) and (b).
- ⁹¹ Ibid., para. 62 (b).
- ⁹² CERD/C/USA/CO/10-12, para. 49 (a)–(d). See also CCPR/C/USA/CO/5, para. 66.
- ⁹³ See https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT/CERD/ALE/USA/9503&Lang=en; https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2fCERD%2fALE%2fUSA%2f9558&Lang=en; https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2FCERD%2FALE%2FUSA%2F9988&Lang=en; and tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2FCERD%2FALE%2FUSA%2F10043&Lang=en.
- ⁹⁴ CERD/C/USA/CO/10-12, para. 50 (a), (c) and (d); and CCPR/C/USA/CO/5, para. 67 (b)–(d).
- ⁹⁵ A/HRC/56/68/Add.1, para. 72 (rr).
- ⁹⁶ A/HRC/49/46/Add.1, para. 76.
- ⁹⁷ Ibid., para. 63.
- ⁹⁸ See <https://www.ohchr.org/en/press-releases/2025/03/usa-businesses-must-stand-firm-diversity-equity-and-inclusion-say-experts>.
- ⁹⁹ A/HRC/56/49/Add.3, paras. 20, 22 and 83 (c) and (e). See also CCPR/C/USA/CO/5, para. 25.
- ¹⁰⁰ A/HRC/56/49/Add.3, paras. 33, 38 and 84 (b).
- ¹⁰¹ See <https://www.ohchr.org/en/press-releases/2025/04/un-experts-alarmed-illegal-deportations-united-states-el-salvador>.
- ¹⁰² See <https://www.ohchr.org/en/press-releases/2025/05/us-turk-raises-human-rights-concerns-about-deportations>.
- ¹⁰³ A/HRC/56/68/Add.1, para. 51.
- ¹⁰⁴ Ibid., para. 52.
- ¹⁰⁵ CCPR/C/USA/CO/5, para. 55 (b) and (c). See also CERD/C/USA/CO/10-12, para. 52 (a).
- ¹⁰⁶ A/HRC/56/49/Add.3, paras. 68 and 90 (a) and (b).
- ¹⁰⁷ CERD/C/USA/CO/10-12, para. 51 (b) and (d).
- ¹⁰⁸ CCPR/C/USA/CO/5, para. 55 (e).
- ¹⁰⁹ Ibid., paras. 54 and 55 (a).
- ¹¹⁰ A/HRC/49/46/Add.1, para. 78 (a).
- ¹¹¹ A/HRC/58/57/Add.1, paras. 56 (d) and 59 (g).